

Komal Mallinath Zalake vs Mallinath @ Vinod Mahadev Zalake on 21 June, 2019

Author: K.K.Tated

Bench: K.K.Tated

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY CIVIL APPELLATE JURISDICTION

MISC.CIVIL APPLICATION NO.4 OF 2019

Komal M. Zalake		... Applicant.
	Vs.	
Mallinath @ Vinod M. Zalake		... Respondent.
Mr.Nitesh J. Mohite,	advocate I/b Sumant Deshpande, for	
applicant.		

CORAM : K.K.TATED, J.

DATED : JUNE 21, 2019.

P.C.

Heard learned counsel for applicant.

2. Though respondent is duly served, no one appeared when the matter called out.

3. By this Miscellaneous Civil Application, applicant/wife is seeking transfer of Marriage Petition No.A-155/2018 filed by respondent/husband, u/s 13(1)(ib) of Hindu Marriage Act, for divorce before Family Court at Solapur to Family Court at Pune .

4. Hence, the following order.

a)Registry is directed to issue fresh notice to respondent for final disposal of matter at the stage of admission, returnable on 19.7.2019.

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b)In addition to usual mode of service, the appellant is permitted to serve the respondents by private notice either by RPAD and/or hand delivery, stating that matter is kept on 19.7.2019 for final

disposal at the stage of admission itself and file affidavit of service to that effect on before next date.

c) Pending hearing and final disposal of this application, further proceeding in Marriage Petition No.A-155/2018 filed by respondent/husband under Section 13(1)(ib), pending before Family Court Solapur, is stayed.

(K.K.TATED, J.)